

2013 SCC OnLine All 11738

(BEFORE V.K. SHUKLA AND SUNEET KUMAR, JJ.)

Mohd. Daud Petitioner

v.

State of U.P. and 2 Others Respondents

Counsel for Petitioner:- Swarn Kumar Srivastava, Anil Kumar Srivastava

Counsel for Respondent:- C.S.C., Mahboob Ahmad

Writ - C No. - 66748 of 2013

Decided on December 6, 2013

Hon'ble V.K. Shukla, J.

Hon'ble Suneet Kumar, J.

Petitioner before this Court is questioning the validity of demand notice dated 23.10.2013 and further prayer is not to take any coercive action against the petitioner.

The demand notice in question is based on bills that have been raised and that has not been paid.

Petitioner is contending before this Court that once in the past permanent disconnection in question has been made, then after the aforementioned period, the bill in question could not have been raised and based on the same, recovery could not be effected.

The said claim in question is being resisted by the department concerned by contending that at no point of time, petitioner ever proceeded to make a request for getting permanent disconnection and in such a situation and in this background, the bill in question have been raised and the petitioner is under statutory obligation to pay the same.

In the opinion of the Court in pith and substance, it is the raising of the bill which is subject matter of issue that is being raised and as such at the first instance such an issue should be raised as is provided for under Clause 6.5. of U.P Electricity Supply Code 2005.

Accordingly, this Court is not entertaining the writ petition in question but leaves it open to the petitioner to raise the dispute as is being raised by the petitioner before this Court that bills in question has been incorrectly raised before the competent authority, who will look into the

matter and redress the same in accordance with law.

With these observations, on this ground of alternative remedy, the writ petition is not being entertained and is dismissed accordingly.

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